

SINGLE-POINT TESTIMONY PACKAGE

Court Document Procedure, Evidence Checklist, and Primary Testimony Template

Prepared as a clean drafting format based on the provided notes

Important Legal Note

This is a drafting template and organization aid. It is not a substitute for advice from an advocate.

Before filing, the facts, annexures, exhibit markings, admissibility requirements, and current legal provisions should be checked by a qualified lawyer.

Sensitive personal details may be anonymized where the court permits or where identity protection is required.

How to Use This PDF

1. **Fill placeholders only after lawyer review:** Use exact court name, case title, FIR details, dates, and party names.
2. **Keep the narrative factual:** Write events in chronological order. Avoid assumptions, exaggeration, or emotional argument inside the factual statement.
3. **Attach proof carefully:** Use originals where available and attach certified copies or legally acceptable secondary evidence where necessary.
4. **Use one consistent account:** The same written statement, recorded version, and transcript should match each other as closely as possible.
5. **Do not file without review:** Ask an advocate to verify whether the document should be filed as an affidavit, statement, application, annexure, or evidence affidavit.

Part 1 - Procedures for Using Documents in Court

6. **Production:** The original document should be produced by the author or by a person who has knowledge of the document and its contents.
7. **Exhibition / Marking:** The document is shown to the witness, who identifies it and speaks about its authenticity. After this, the court may assign an exhibit mark such as Ex. P-1 or Ex. D-1.
8. **Proving Contents:** Mere filing is not enough. The witness must testify about the truth, source, and relevance of the contents so that the court can rely on the document.
9. **Cross-Examination:** The opposite party may use documents to question, contradict, or confront a witness.
10. **Admissibility:** Relevant original documents are preferred. Copies or digital records may require proper certification or legal justification before being relied on.

Key Legal Context

Marking a document as an exhibit is different from proving it. A document is only treated as proved when the court accepts the testimony and supporting requirements connected with that document.

Tips for Valid Court Documents

- **Use originals:** Primary evidence is preferred. Copies should be supported by a valid reason and required certification.
- **Organize chronologically:** Arrange documents date-wise so the court can understand the sequence easily.
- **Verify signatures and dates:** Check that every document is signed, dated, and properly identified.
- **Keep a clear document index:** Every annexure should have a short description, date, source, and purpose.

- **Avoid overwriting:** Do not alter documents. If a correction is needed in a drafted statement, initial it and keep it transparent.

Part 2 - Single-Point Testimony Package

Purpose: This bundle is designed to create one consistent, trauma-informed record that can be referred to across stages, reducing unnecessary repetition while preserving legal clarity.

Package Contents

- **1. Primary Narrative Statement:** The master written version of the incident, impact, reporting, and supporting evidence.
- **2. Video / Audio Recorded Testimony:** A continuous recording of the same statement, without visible coaching or breaks.
- **3. Certified Transcript:** A word-for-word transcript of the recording, attached as an annexure.
- **4. Digital Evidence Certificate:** A certificate for electronic records, to be prepared in the legally required format.
- **5. List of Documents:** A formal table describing every document and what it proves.

Reality Check

- This package can help keep the account consistent and reduce repeated narration.
- It can support requests for sensitive handling, in-camera proceedings, and limited repetition during questioning, where legally permissible.
- It usually cannot replace mandatory statements, court testimony, or cross-examination requirements.
- The exact way to use this package should be decided by the advocate handling the matter.

Part 3 - Document Format for Court Submission

- Case Details:** Include court name, case number, FIR number if applicable, police station, and full case title.
- List of Documents:** File a document index containing description, date, source, and purpose of each document.
- Exhibit Marking:** Documents may be marked by the court such as Ex. P-1 for prosecution/plaintiff or Ex. D-1 for defence, depending on the matter.
- Signature:** The document list, statement, or affidavit should be signed by the party and/or advocate as required.
- Affidavit Format:** Written testimony should be arranged in numbered paragraphs and properly sworn/attested where required.

Suggested List of Documents Table

Sr. No.	Document / Annexure	Date	Source / Prepared By	Purpose / What It Proves
1	Annexure ____	___ / ___ / 20__	_____	_____ _____
2	Annexure ____	___ / ___ / 20__	_____	_____ _____
3	Annexure ____	___ / ___ / 20__	_____	_____ _____
4	Annexure ____	___ / ___ / 20__	_____	_____ _____
5	Annexure ____	___ / ___ / 20__	_____	_____ _____

Sr. No.	Document / Annexure	Date	Source / Prepared By	Purpose / What It Proves

6	Annexure ____	___ / ___ / 20__	_____	_____ _____
7	Annexure ____	___ / ___ / 20__	_____	_____ _____
8	Annexure ____	___ / ___ / 20__	_____	_____ _____

Part 4 - Comprehensive Victim Statement Template

IN THE COURT OF [NAME OF COURT]

Case Title: State vs [Accused Name]

(FIR No. ___ / Year ___, Police Station: ___)

COMPREHENSIVE VICTIM STATEMENT

(Primary Testimony Record)

I, [Full Name / "X" if identity is protected], aged ___ years, residing at [Full Address], do hereby state as follows:

1. Status

16. I am the victim/complainant in the present matter and am fully aware of the facts stated in this statement.

2. Purpose of This Statement

17. This statement is being submitted as my complete and consolidated account of events, with the intent to minimize repeated recounting during investigation and trial, as far as legally permissible.

3. Incident Narrative

18. On [date], at approximately [time], at [location], the following incident occurred:

19. [Write the account here in clear chronological order. Include only facts personally known to the deponent. Include identity/description of accused, sequence of events, surrounding circumstances, and any immediate response. Avoid speculation or assumptions.]

20. [If multiple dates/events are involved, continue in separate numbered paragraphs.]

4. Aftermath and Impact

21. As a result of the above incident(s), I suffered the following impact:

- Physical impact: [injuries, medical condition, treatment, or pain, if any]
- Emotional/psychological impact: [distress, fear, trauma, disruption to daily life, if any]
- Financial/educational/work impact: [expenses, missed classes/work, travel, or other losses, if any]

5. Reporting and Investigation

22. I reported the matter to [Police Station Name], leading to registration of FIR No. ___ dated ___.

23. I have cooperated with the investigation and provided all necessary details to the authorities.

24. Any additional statements, medical examination, digital evidence submission, or witness details are mentioned in the annexures.

6. Supporting Evidence

25. The following materials support my statement and are annexed where applicable:

- FIR copy - Annexure A
- Medical records - Annexure B
- Electronic evidence such as audio, video, messages, emails, screenshots - Annexure C
- Transcript of recorded statement - Annexure D
- Witness details or supporting statements - Annexure E
- Any other relevant documents - Annexure F

7. Request to the Court

26. I respectfully request that this statement be treated as my primary and consistent account, and be referred to during proceedings to reduce the need for repeated narration of the same facts, as far as legally permissible.
27. I also request that sensitive questioning, unnecessary repetition, and disclosure of protected identity details be avoided where the law permits and where the court considers appropriate.

Declaration

- This statement has been made voluntarily, without coercion or undue influence.
- The contents are true and correct to the best of my knowledge and belief.
- Nothing material has been concealed.
- I understand that this document should be filed or used only after legal review by my advocate.

Verification

Verified at [Place] on this ____ day of [Month, Year].

Signature of Deponent: _____

Name: _____

Date: _____ Place: _____

Attestation

Sworn before me on this ____ day of _____, 20____ at [Place].

Signature and Seal: _____

(Notary Public / Oath Commissioner / Authorized Officer, as applicable)

Part 5 - Video / Audio Recorded Testimony Checklist

- Record the same statement once in a calm setting.
- Keep the recording continuous, with no cuts or edits.
- Start with date, time, place, and identity details, or protected identity format if advised by lawyer.
- Do not keep visible coaching, prompting, or scripted intervention in the frame/audio.
- Keep the file name, device details, storage location, and transfer history noted for chain of custody.
- Prepare a word-for-word transcript and attach it as an annexure.
- Ask an advocate to prepare the required certificate for electronic evidence.

Part 6 - Digital Evidence Certificate Checklist

For Advocate / Evidence Handler

Electronic evidence such as video recordings, audio recordings, screenshots, emails, call recordings, chats, and files may require a legally valid certificate.

The certificate should be prepared by the person legally competent to certify the device/system and should match the current legal requirements applicable to the case.

- Identify the electronic record clearly: file name, format, duration, date, and device/source.
- Mention how the record was produced, copied, stored, and preserved.
- Mention the device/system used and who controlled or operated it.
- State that the copy produced is accurate and has not been altered, as applicable.
- Attach hash value or metadata record if advised by the advocate or forensic expert.
- Sign and date the certificate properly.

Part 7 - Requests and Safeguards to Consider Through Advocate

- Request for in-camera proceedings where legally available.
- Request for using the prior written statement to guide examination, where legally permissible.
- Request to avoid unnecessary repetition of traumatic details.
- Request for identity protection or anonymization where applicable.
- Request for respectful, non-intimidating, and relevant questioning.
- Request for proper handling of digital evidence and sealed storage of sensitive material.

Part 8 - Final Filing Checklist

- ☐ Court name, case title, FIR number, police station, and dates checked.
- ☐ All paragraphs numbered and facts written chronologically.
- ☐ Statement signed by deponent on every required page if advised.
- ☐ Verification and attestation completed where required.
- ☐ Annexure list prepared and documents arranged chronologically.
- ☐ Originals/certified copies collected where available.
- ☐ Digital evidence certificate prepared where required.
- ☐ Transcript attached for any recorded testimony.
- ☐ Sensitive identity details protected where legally permitted.
- ☐ Final draft reviewed by advocate before filing.